

**Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO**

INTRODUCED

LLS NO. 26-0636.01 Craig Harper x3481

HOUSE BILL 26-1160

HOUSE SPONSORSHIP

Sirota, Brown, Taggart

SENATE SPONSORSHIP

Bridges, Amabile, Kirkmeyer

House Committees
Appropriations

Senate Committees

A BILL FOR AN ACT

101 **CONCERNING A SUPPLEMENTAL APPROPRIATION TO THE DEPARTMENT**
102 **OF LAW.**

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

Supplemental appropriations are made to the department of law.

1 *Be it enacted by the General Assembly of the State of Colorado:*

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

1 **SECTION 1. Appropriation to the department of law for the**
2 **fiscal year beginning July 1, 2025.** In Session Laws of Colorado 2025,
3 section 2 of chapter 426, (SB 25-206), **amend** Part XI as follows:
4 Section 2. **Appropriation.**

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	PART XI						
2	DEPARTMENT OF LAW						
3							
4	(1) ADMINISTRATION						
5	Personal Services	6,902,149	580,431			6,321,718 ^a	
6			(2.8 FTE)			(60.2 FTE)	
7	Office of Community						
8	Engagement	1,587,558	1,096,341		491,217 ^b		
9		(14.0 FTE)					
10	Health, Life, and Dental	9,258,351	2,226,962		1,566,729^c	5,227,709^d	236,951(I)^e
11		9,596,691	2,308,345		1,623,984 ^c	5,418,752 ^d	245,610(I) ^e
12	Short-term Disability	58,188	14,127		8,069 ^c	34,599 ^d	1,393(I) ^e
13	Paid Family and Medical						
14	Leave Insurance	374,062	90,815		51,872 ^c	222,420 ^d	8,955(I) ^e

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Unfunded Liability						
2	Amortization Equalization						
3	Disbursement Payments	8,312,502	2,018,121		1,152,712 ^c	4,942,662 ^d	199,007(I) ^e
4	Salary Survey for Classified						
5	Employees	620,440	180,095		202,916 ^c	202,331 ^d	35,098(I) ^e
6	Salary Survey for Exempt						
7	Employees	2,531,389	576,394		173,676 ^c	1,746,289 ^d	35,030(I) ^e
8	Step Pay	487,416	101,123		57,793 ^c	324,257 ^d	4,243(I) ^e
9	PERA Direct Distribution	1,521,258	405,753		210,956 ^c	904,549 ^d	
10	Workers' Compensation	223,238	59,985		28,705 ^c	127,330 ^d	7,218(I) ^e
11	Attorney Registration and						
12	Continuing Legal Education	201,977	38,995		5,123 ^c	155,817 ^d	2,042(I) ^e
13	Operating Expenses	265,803	24,060			241,743 ^a	
14	Legal Services	250,530	96,678		153,852 ^f		

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Administrative Law Judge						
2	Services	431			431 ^c		
3	Payment to Risk Management						
4	and Property Funds	425,259	114,273		54,680 ^c	242,555 ^d	13,751(I) ^e
5	Vehicle Lease Payments	104,090	42,765		16,824 ^c	35,926 ^d	8,575(I)^e
6		99,694	27,869			49,426 ^d	5,575(I) ^e
7	Information Technology Asset						
8	Maintenance	1,369,433	367,981		176,081 ^c	781,087 ^d	44,284(I) ^e
9	Ralph L. Carr Colorado						
10	Judicial Center Leased Space	3,727,340	1,001,570		479,263 ^c	2,125,974 ^d	120,533(I) ^e
11	Lease Payments	607,687	163,801		81,659^c	362,227^d	
12	Payments to OIT	871,534	234,282		111,624^c	497,433^d	28,195(I)^e
13		620,678	169,578		79,368 ^c	354,353 ^d	17,379(I) ^e
14	Digital Trunk Radio	24,831	13,922		6,449 ^c	4,460 ^d	

			APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS	
	\$	\$	\$	\$	\$	\$	\$	
1	CORE Operations	11,522		3,097		1,480 ^c	6,572 ^d	373(I) ^e
2	Attorney General							
3	Discretionary Fund	5,000		5,000				
4		<u>39,741,988</u>						
5		39,217,389						
6								

7 ^a These amounts shall be from departmental indirect cost recoveries or the Indirect Costs Excess Recovery Fund created in Section 24-75-1401 (2), C.R.S. or the statewide indirect cost
8 recoveries or the Indirect Costs Excess Recovery Fund created in Section 24-75-1401 (2), C.R.S.

9 ^b This amount shall be from custodial money. Pursuant to Section 24-31-108 (5), C.R.S., custodial money received by the Attorney General is not subject to annual appropriation, but
10 the expenditure of such money may be indicated in the annual general appropriation act. Expenditures from custodial money do not constitute fiscal year spending for the purposes of
11 Section 20 of Article X of the State Constitution.

12 ^c Of these amounts, ~~\$836,137(I)~~ \$827,662(I) shall be from custodial money, ~~\$42,857~~ \$38,790 shall be from the Marijuana Tax Cash Fund created in Section 24-28.8-501 (1), C.R.S.,
13 and ~~\$3,508,048~~ \$3,463,930 shall be from various sources of cash funds. Pursuant to Section 24-31-108 (5), C.R.S., custodial money received by the Attorney General is not subject to
14 annual appropriation, but the expenditure of such money may be indicated in the annual general appropriation act. Expenditures from custodial money do not constitute fiscal year
15 spending for the purposes of Section 20 of Article X of the State Constitution.

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^d These amounts shall be from various sources of reappropriated funds.						
2	^e These amounts shall be from the federal Medicaid Fraud Control Program administered by the U.S. Department of Health and Human Services and are shown for informational purposes						
3	only.						
4	^f This amount shall be from the P.O.S.T. Board Cash Fund created in Section 24-31-303 (2)(b), C.R.S.						
5							
6	(2) LEGAL SERVICES TO STATE AGENCIES⁶⁸						
7	Personal Services	59,437,618					
8	(361.5 FTE)						
9	Operating and Litigation	3,140,463					
10	Indirect Cost Assessment	5,512,959					
11		68,091,040			1,947,137 ^a	66,143,903 ^b	
12							

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^a Of this amount, \$1,747,137 shall be from funds that are received for the provision of legal services and that are credited to the Legal Services Cash Fund created in Section 24-31-108						
2	(4), C.R.S., and \$200,000 shall be from the Attorney Fees and Costs Account created in Section 24-31-108 (3), C.R.S. The cash funds appropriation from the Legal Services Cash Fund						
3	reflects funds received from state entities for which there is not a corresponding appropriation made in this act for the purchase of legal services. The Attorney General is authorized						
4	to transfer spending authority between cash and reappropriated fund sources appropriated within this section (2), but the Attorney General shall not increase total spending authority						
5	for the line item appropriations within this section (2).						
6	^b This amount shall be from funds that are received for the provision of legal services and that are credited to the Legal Services Cash Fund created in Section 24-31-108 (4), C.R.S. The						
7	reappropriated funds appropriation reflects funds received from state agencies for which there is a corresponding appropriation made in this act for the purchase of legal services. The						
8	Attorney General is authorized to transfer spending authority between cash and reappropriated fund sources appropriated within this section (2), but the Attorney General shall not increase						
9	total spending authority for the line item appropriations within this section (2).						
10							
11	(3) CRIMINAL JUSTICE AND APPELLATE						
12	Special Prosecutions Unit	6,655,312	3,608,949		2,029,862 ^a	1,016,501 ^b	
13			(23.6 FTE)		(15.4 FTE)	(7.4 FTE)	
14	Auto Theft Prevention Grant	222,465				222,465(I) ^c	
15						(1.0 FTE)	

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Appellate Unit	6,236,031	5,376,375			859,656 ^d	
2	(41.6 FTE)						
3	Peace Officers Standards and						
4	Training Board Support	6,323,396			6,323,396 ^e		
5					(16.0 FTE)		
6	Indirect Cost Assessment	605,785			490,249 ^f	115,536 ^b	
7		20,042,989					
8							
9	^a This amount shall be from the Insurance Fraud Cash Fund created in Section 24-31-104.5 (2), C.R.S.						
10	^b These amounts shall be transferred from the Department of Regulatory Agencies from the Securities Fraud Prosecution line item in the Division of Securities section. These amounts						
11	originate as cash funds from the Division of Securities Cash Fund pursuant to Section 11-51-707 (2), C.R.S.						
12	^c This amount shall be transferred from the Department of Public Safety from the Automobile Theft Prevention Authority line item in the Colorado State Patrol section, from a grant						
13	awarded pursuant to Section 42-5-112 (3), C.R.S. This amount is shown for informational purposes only because grant funds are continuously appropriated to the Department pursuant						
14	to Section 24-31-108 (2)(b), C.R.S.						

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^d Of this amount, \$774,660 shall be from departmental indirect cost recoveries or the Indirect Costs Excess Recovery Fund created in Section 24-75-1401 (2), C.R.S., and \$84,996(I)						
2	shall be transferred from the Department of Public Safety from the State Victims Assistance and Law Enforcement Program line item in the Division of Criminal Justice, Victims						
3	Assistance section, pursuant to Section 24-33.5-506 (1)(c), C.R.S.						
4	^e Of this amount, \$5,286,630 shall be from the P.O.S.T. Board Cash Fund created in Section 24-31-303 (2)(b), C.R.S., and \$1,036,766 shall be from the Marijuana Tax Cash Fund created						
5	in Section 39-28.8-501 (1), C.R.S.						
6	^f Of this amount, \$250,295 shall be from the P.O.S.T. Board Cash Fund created in Section 24-31-303 (2)(b), C.R.S., and \$239,954 shall be from the Insurance Fraud Cash Fund created						
7	in Section 24-31-104.5 (2), C.R.S.						
8							
9	(4) WATER AND NATURAL RESOURCES						
10	Federal and Interstate Water						
11	Unit	1,496,305	1,496,305				
12			(10.5 FTE)				
13	Defense of the Colorado River						
14	Basin Compact	1,061,699			1,061,699 ^a		
15					(4.5 FTE)		

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Defense of the Republican						
2	River Compact	110,000			110,000^a		
3		35,091			35,091 ^a		
4	Consultant Expenses	475,000			475,000^b		
5		549,909			549,909 ^b		
6	Comprehensive						
7	Environmental Response,						
8	Compensation and Liability						
9	Act	655,018				655,018 ^c	
10						(3.5 FTE)	
11	Indirect Cost Assessment	<u>54,646</u>				54,646 ^c	
12		3,852,668					
13							
14	^a These amounts shall be from the Colorado Water Conservation Board's Litigation Fund created in Section 37-60-121 (2.5)(a), C.R.S.						

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	^b Of this amount, \$425,000 \$499,909 shall be from the Colorado Water Conservation Board's Litigation Fund created in Section 37-60-121 (2.5)(a), C.R.S., and \$50,000 shall be from						
2	the Attorney Fees and Costs Account created in Section 24-31-108 (3), C.R.S.						
3	^c These amounts shall be transferred from the Department of Public Health and Environment from the Transfer to the Department of Law for CERCLA-Related Costs line item in the						
4	Hazardous Materials and Waste Management Division, Contaminated Site Cleanups and Remediation Programs section. These amounts originate as cash funds from the Hazardous						
5	Substance Response Fund and are transferred pursuant to Section 25-16-104.5 (1.7)(a)(III), C.R.S.						
6							
7	(5) CONSUMER PROTECTION, ANTITRUST, AND CIVIL						
8	RIGHTS						
9	Consumer Protection,						
10	Antitrust, and Civil Rights	7,160,749		3,219,315		3,739,440 ^a	201,994 ^b
11		(44.6 FTE)					
12	Consumer Credit Unit	2,891,920				2,891,920 ^c	
13						(25.0 FTE)	
14	False Claims Recovery Act						
15	Reimbursements	300,000				300,000 ^d	

			APPROPRIATION FROM				
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	Patterns and Practices	547,820	547,820				
2			(3.2 FTE)				
3	Medicaid Fraud Control Unit	3,815,292	953,823				2,861,469(I) ^e
4			(9.0 FTE)				(19.0 FTE)
5	Indirect Cost Assessment	1,164,733			813,439 ^f	23,420 ^b	327,874(I) ^e
6		15,880,514					
7							

8 ^a Of this amount, \$2,874,309(I) shall be from custodial money, \$583,000 shall be from the Marijuana Tax Cash Fund created in Section 39-28.8-501 (1), C.R.S., and \$282,131 shall be
 9 from the Tobacco Settlement Defense Account of the Tobacco Litigation Settlement Cash Fund created in Section 24-22-115 (2)(a), C.R.S. Pursuant to Section 24-31-108 (5), C.R.S.,
 10 custodial money received by the Attorney General is not subject to annual appropriation but the expenditure of such money may be indicated in the annual general appropriation act.
 11 Expenditures from custodial money do not constitute fiscal year spending for the purposes of Section 20 of Article X of the State Constitution.

12 ^b These amounts shall be transferred from the Department of Regulatory Agencies from the Mortgage Broker Consumer Protection line item in the Division of Real Estate. These amounts
 13 originate as cash funds from the Division of Real Estate Cash Fund created in Section 12-10-215 (2)(a)(II)(B), C.R.S., and are transferred pursuant to Section 12-10-719, C.R.S.

	ITEM & SUBTOTAL	TOTAL	APPROPRIATION FROM				
			GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1	° Of this amount, \$2,340,823 shall be from the Consumer Credit Unit Cash Fund created in Section 5-2-302 (11)(a), C.R.S., \$551,097(I) shall be from the Student Loan Ombudsperson						
2	and Student Loan Servicer Licensing Fund created in Section 5-20-104 (3)(a), C.R.S. Appropriations from the Consumer Credit Unit Cash Fund are shown for informational purposes						
3	only because they are continuously appropriated pursuant Section 5-2-302 (11)(a), C.R.S. and appropriations from the Student Loan Ombudsperson and Student Loan Servicer Licensing						
4	Fund are shown for informational purposes only because they are continuously appropriated pursuant to Section 5-20-104 (3)(c), C.R.S.						
5	d This amount shall be from the False Claims Recovery Cash Fund created in Section 24-31-1209(1), C.R.S.						
6	° These amounts shall be from the federal Medicaid Fraud Control Program administered by the U.S. Department of Health and Human Services and are shown for informational purposes						
7	only.						
8	f Of this amount, \$344,136(I) shall be from custodial money, \$328,512(I) shall be from the Consumer Credit Cash Fund created in Section 5-2-302 (11)(a), C.R.S., \$62,574(I) shall be						
9	from the Student Loan Ombudsperson and Student Loan Servicer Licensing Fund created in Section 5-20-104 (3)(a), C.R.S., \$46,930 shall be from the Marijuana Tax Cash Fund created						
10	in Section 29.28.8-501 (1), C.R.S., and \$31,287 shall be from the Tobacco Settlement Defense Account of the Tobacco Litigation Settlement Cash Fund created in Section 24-22-115						
11	(2)(a), C.R.S., pursuant to Section 24-31-108 (5), C.R.S. Custodial money received by the Attorney General is not subject to annual appropriation, but the expenditure of such money						
12	may be indicated in the annual general appropriation act. Expenditures from custodial money do not constitute fiscal year spending for the purposes of Section 20 of Article X of the						
13	State Constitution. Appropriations from the Consumer Credit Unit Cash Fund are shown for informational purposes only because they are continuously appropriated pursuant Section						
14	5-2-302 (11)(a), C.R.S. and appropriations from the Student Loan Ombudsperson and Student Loan Servicer Licensing Fund are shown for informational purposes only as they are						
15	continuously appropriated pursuant to Section 5-20-104 (3)(c), C.R.S.						

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$
1							
2	(6) SPECIAL PURPOSE						
3	District Attorneys' Salaries	2,943,586	2,943,586				
4	Deputy District Attorney						
5	Training	350,000	350,000				
6	District Attorney						
7	Assistance for Bond						
8	Hearings Grants	600,000	600,000				
9	Litigation Management	200,000			200,000 ^a		
10	Tobacco Litigation	100,000			100,000 ^b		
11	CORA OML Attorney	116,580	116,580				
12			(1.0 FTE)				
13		4,310,166					
14							

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$

1 ^a This amount shall be from either excess earnings credited to the Legal Services Cash Fund created in Section 24-31-108 (4), C.R.S., or from the Attorney Fees and Costs Account created
2 pursuant to Section 24-31-108 (3), C.R.S.

3 ^b This amount shall be from the Tobacco Settlement Defense Account of the Tobacco Litigation Settlement Cash Fund created in Section 24-22-115 (2)(a), C.R.S. Expenditures from
4 the Tobacco Settlement Defense Account of the Tobacco Litigation Settlement Cash Fund do not constitute fiscal year spending for the purposes of Section 20 of Article X of the State
5 Constitution.

6

7

8 **TOTALS PART XI**

9 (LAW)	\$151,919,365	\$28,669,324		\$25,514,253 ^a	\$93,800,797 ^b	\$3,934,991 ^c
10	\$151,394,766	\$28,507,306		\$25,457,593 ^a	\$93,500,033 ^b	\$3,929,834 ^c

11

12 ^a Of this amount, \$5,461,334 contains an (I) notation.

13 ^b Of this amount, \$307,461 contains an (I) notation.

14 ^c This amount contains an (I) notation.

15

		APPROPRIATION FROM					
	ITEM & SUBTOTAL	TOTAL	GENERAL FUND	GENERAL FUND EXEMPT	CASH FUNDS	REAPPROPRIATED FUNDS	FEDERAL FUNDS
	\$	\$	\$	\$	\$	\$	\$

1 **FOOTNOTES** -- The following statements are referenced to the numbered footnotes throughout section 2.

2

3 68 Department of Law, Legal Services to State Agencies -- In making this appropriation, it is the General Assembly's intent that hourly billing rates charged by

4 the Department for legal services to state agencies not exceed \$145.70 per hour for attorneys and not exceed \$97.68 per hour for legal assistants, which equates

5 to a blended legal rate of \$138.47 per hour.

1 **SECTION 2. Safety clause.** The general assembly finds,
2 determines, and declares that this act is necessary for the immediate
3 preservation of the public peace, health, or safety or for appropriations for
4 the support and maintenance of the departments of the state and state
5 institutions.